

**HIGH COURT OF TRIPURA
AGARTALA**

WP(C) No.106 of 2020

Sri Bijan ChakrabortyPetitioner(s)

Versus

The State of Tripura & othersRespondent(s)

WP(C) No.107 of 2020

Sri Ranjit BiswasPetitioner(s)

Versus

The State of Tripura & othersRespondent(s)

WP(C) No.108 of 2020

Sri Giridari GoswamiPetitioner(s)

Versus

The State of Tripura & othersRespondent(s)

WP(C) No.109 of 2020

Sri Sankar Ch. DasPetitioner(s)

Versus

The State of Tripura & othersRespondent(s)

WP(C) No.110 of 2020

Sri Adhir BarmanPetitioner(s)

Versus

The State of Tripura & othersRespondent(s)

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HON'BLE THE CHIEF JUSTICE MR. AKIL KURESHI

For Petitioner(s) : Mr. C.S. Sinha, Advocate,
Ms. Swarupa Chisim, Advocate.
For Respondent(s) : Mr. D. Sharma, Addl. G.A.
Date of hearing
& judgment : **11th February, 2020.**

Whether fit for reporting :

Yes	No
	✓

JUDGMENT & ORDER (ORAL)

These petitions arise in common background and would be disposed of by this common judgment. For convenience, facts may be noted from WP(C) No.106 of 2020.

Petitioner has challenged an order dated 22.07.2016 by which the training incentive granted to him has been withdrawn. He was also put to notice why the financial benefit already granted should not be recovered.

The petitioner is employed as a teacher in the Government school. Under a notification dated 06.01.2011, the Government of Tripura promulgated Tripura State Civil Services (Revised Pay) (Fifth Amendment) Rules, 2009 by which Rule 13(1)(v) of the Tripura State Civil Services (Revised Pay) Rules, 2009 came to be amended. As per this amendment, the employees who had completed full training course and appeared in the end term examination prior to 05.05.2009 and passed the examination in all subjects in one attempt shall be exempted from the operation of Rule-13(1)(v) and will be entitled to training incentive in the

form of advance increment. The petitioner claims that he had passed the examination of Bachelor of Education Part-I and Part-II prior to the said date. He was granted advance increment along with other similarly situated employees under a memo dated 08.02.2016. However, soon thereafter by impugned memorandum dated 22.07.2016 this benefit was withdrawn on the ground that the petitioner had not cleared the examination in one attempt. This order recorded that the benefit was allowed on the basis of his application and the proposal furnished by the Headmaster in which the petitioner had not revealed that he had passed the B.Ed Part-I examination in more than one attempts.

The petitioner does not dispute that he had not cleared all subjects in the said examination in the very first attempt. In fact, it is admitted that in two papers of the first year the petitioner could not secure pass marks upon which he was asked to appear again which he did in the next year and duly cleared the subjects. His learned advocate, however, submitted that the course was of 2 years duration and since the petitioner had cleared the course within 2 years, it must be seen as having passed in the first attempt.

The interpretation of the petitioner is incorrect. The Rule in specific terms requires that the concerned teacher must have passed all subjects in first attempt. He does not provide that anyone who clears the course within the duration specified would be entitled to the exemption. When the petitioner did not clear

the first two papers and was required to appear again, he cannot be stated to have passed all papers in first attempt.

All these petitions are, therefore, dismissed.

Pending application(s), if any, also stands disposed of.

(AKIL KURESHI), CJ

Dipesh

